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SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES — PROBATE DIVISION

Stanley Mosk Courthouse
111 North Hill Street, Los Angeles, CA 90012

In the Matter of the Conservatorship of
the Person of:

YOLANDA REYES,

Conservatee.

Case No. 25STPB09876

**ORDER TERMINATING
TEMPORARY
CONSERVATORSHIP OF THE
PERSON**

*(Prob. Code §§ 1860, 1861, 1863, 2257;
Prob. Code § 810 et seq.)*

Hearing Date: February 5, 2026

Time: 8:30 a.m.

Department: 9 (Probate)

Judicial Officer: Hon. Beatrice N.

Halloway,

Judge of the Superior Court

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APPEARANCES

The temporary conservator, **Marisela Reyes**, appeared personally and through counsel, Elias G. Portilla, Esq. (SBN 218774), of Portilla & Yee, LLP, 700 South Flower Street, Suite 1900, Los Angeles, California 90017.

1 The conservatee, **Yolanda Reyes**, appeared personally by videoconference from the Alder
2 Creek Neuro-Rehabilitation Institute, 4501 Recovery Parkway, Rivergate, California
3 91766. The Court, having engaged the conservatee in colloquy and having observed her
4 responses, is satisfied that the conservatee was able to hear, understand, and participate in
5 the proceeding.

6 **Melissa T. Aoyagi, Esq.**, court-appointed counsel for the conservatee under Probate Code
7 § 1471 (Los Angeles County Superior Court Probate Volunteer Panel), appeared on her
8 behalf and joined in the request for termination.

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10 Court Investigator **Elena Marchetti** was present and available to be heard.

11 12 **MATTERS CONSIDERED**

13 The Court has considered:

- 14 1. The written stipulation of the parties for termination of the temporary
15 conservatorship of the person, executed February 4, 2026, by petitioner-conservator
16 Marisela Reyes; by conservatee Yolanda Reyes; by petitioner-conservator's counsel
17 Elias G. Portilla, Esq.; and by court-appointed conservatee's counsel Melissa T.
18 Aoyagi, Esq.
- 19 2. The **Physician's Certification of Restored Decisional Capacity of Helena**
20 **Vasquez-Ortiz, MD** (physical medicine & rehabilitation), attending physiatrist at the
21 Alder Creek Neuro-Rehabilitation Institute, dated **February 3, 2026**, submitted in
22 support of termination and attached hereto as Exhibit A and incorporated by
23 reference.
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3. The Formal Neuropsychological Evaluation of Marcus Vandenberg, PhD, ABPP-CN (Board Certified in Clinical Neuropsychology), Department of Neuropsychology, Alder Creek Neuro-Rehabilitation Institute, dated February 3, 2026, referenced by Dr. Vasquez-Ortiz and lodged with the Court in support of the certification.
4. The Supplemental Report of the Court Investigator (Marchetti), dated February 4, 2026, concurring that the conservatee has recovered sufficient decisional capacity to make personal and medical decisions and recommending termination of the temporary conservatorship of the person.
5. The Report of PVP Counsel (Aoyagi), dated February 4, 2026, joining in the request for termination and reporting a personal meeting with the conservatee on February 2, 2026, at which the conservatee coherently expressed her wish to have the temporary conservatorship terminated.
6. The conservatee's colloquy with the Court on the record this date.

FINDINGS OF THE COURT

Having reviewed the foregoing and having heard the appearances of counsel and of the conservatee, and good cause appearing:

THE COURT FINDS:

1. Notice of the hearing on termination was given, or waived in writing, as required by Probate Code §§ 1460, 1861, and 2257, including notice to the conservatee, to her spouse (none of record), and to all relatives within the second degree entitled to notice under Probate Code § 1822.

2. The conservatee, **Yolanda Reyes**, date of birth June 22, 1991, presently resides as an inpatient at the Alder Creek Neuro-Rehabilitation Institute, 4501 Recovery Parkway, Rivergate, California 91766, pending completion of her physical rehabilitation.
3. On November 10, 2025, this Court appointed Marisela Reyes as temporary conservator of the person of Yolanda Reyes upon a finding, then supported by the medical evidence, that the conservatee was incapacitated by reason of severe traumatic brain injury sustained in a pedestrian-versus-transit-bus collision on October 18, 2025, and was unable to make informed decisions regarding her own medical treatment and personal needs.
4. Since the appointment of the temporary conservator, the conservatee has undergone acute-care treatment at Rivergate Regional Trauma Center followed by inpatient neurologic rehabilitation at the Alder Creek Neuro-Rehabilitation Institute commencing December 22, 2025.
5. The Court has received and considered the Physician's Certification of Dr. **Helena Vasquez-Ortiz**, MD (physiatry), attending physiatrist of record, dated **February 3, 2026**, which certifies, based on serial clinical observation across the rehabilitation admission and on the formal neuropsychological evaluation of Dr. Vandenberg conducted the same date, that Ms. Reyes has recovered sufficient cognitive capacity to make personal and medical decisions on her own behalf.
6. Dr. Vasquez-Ortiz's certification is corroborated by the concurring opinion of Dr. Marcus Vandenberg (neuropsychology), by the report of court-appointed counsel, and by the Court's own observations of the conservatee's participation in this proceeding.

- 1 7. The Court, applying Probate Code §§ 810–813 and having considered the medical
2 evidence and the conservatee's own presentation, finds that the conservatee's
3 decisional **capacity** for personal and medical decisions has been **restored** to a level
4 at which she is able to make such decisions on her own behalf. The factual basis
5 previously supporting the temporary conservatorship of the person no longer obtains.
- 6 8. All parties in interest — the petitioner-conservator, the conservatee,
7 petitioner-conservator's counsel, and court-appointed conservatee's counsel — have
8 stipulated in writing to termination of the temporary conservatorship of the person
9 effective February 5, 2026.
- 10 9. Termination of the temporary conservatorship of the person is in the best interest of
11 the conservatee and no less restrictive alternative to termination is warranted on the
12 present record.
- 13 10. No conservatorship of the estate was ever sought or granted in this proceeding; the
14 temporary conservatorship terminated hereby extends only to the person.
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17 **ORDER**

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19 **IT IS HEREBY ORDERED, ADJUDGED, AND DECREED:**

- 20 **A.** The Temporary Conservatorship of the Person of Yolanda Reyes, established by
21 Order of this Court dated November 10, 2025, is **TERMINATED**.
- 22 **B.** This Order is effective **02/05/2026**.
- 23 **C.** The Letters of Temporary Conservatorship of the Person heretofore issued to
24 Marisela Reyes are hereby **REVOKED** effective 02/05/2026. Any further exercise
25 of authority under those Letters after the effective date of this Order shall be without
26 legal effect.
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- 1 **D.** Effective 02/05/2026, all authority of the temporary conservator to consent to
2 medical treatment on behalf of the conservatee, to fix her residence or place of care,
3 to access her protected health information as her personal representative under 45
4 C.F.R. § 164.502(g), or otherwise to act on her behalf as to her person, shall cease.
5 From and after the effective date, Ms. Reyes shall give and withhold her own
6 informed consent to medical treatment and shall make her own personal and medical
7 decisions.
- 8 **E.** The former temporary conservator, Marisela Reyes, shall within thirty (30) days of
9 the effective date of this Order file with the Clerk of this Court a final report of her
10 acts as temporary conservator of the person, together with any request for allowance
11 of personal-need reimbursements. Upon approval of the final report, the bond
12 heretofore posted in the sum of \$15,000.00 shall be exonerated.
- 13 **F.** The appointment of Melissa T. Aoyagi, Esq., as court-appointed counsel for the
14 conservatee under Probate Code § 1471 is discharged effective upon entry of this
15 Order, subject to submission of any final fee application under Local Rule 4.126.
- 16 **G.** The pending general Petition for Appointment of Conservator of the Person,
17 previously calendared for hearing after the initial temporary appointment, is
18 **WITHDRAWN** on stipulation of the parties and is taken off calendar. No general
19 conservatorship shall issue on the withdrawn petition.
- 20 **H.** The Clerk shall serve a conformed copy of this Order upon the former temporary
21 conservator; upon Ms. Yolanda Reyes personally; upon former court-appointed
22 counsel; upon the Court Investigator; upon the medical records departments of the
23 Alder Creek Neuro-Rehabilitation Institute and Rivergate Regional Trauma Center;
24 and upon such other persons and entities as required by law, within five (5) days of
25 entry.
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3 Dated: February 5, 2026

4 **HON. BEATRICE N. HALLOWAY**
5 Judge of the Superior Court
6 Department 9 — Probate

7 **CERTIFICATE OF CLERK**

8 I certify that the foregoing is a true and correct copy of the original order entered in the
9 above-entitled proceeding on 02/05/2026 and now on file in this office.

10 DAVID W. SLAYTON, Executive Officer / Clerk of the Superior Court

11 By: _____, Deputy Clerk
12

13 *[SEAL OF THE SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES]*
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1 **EXHIBIT A**

2 **PHYSICIAN'S CERTIFICATION OF RESTORED DECISIONAL CAPACITY**

3 *(Attached to and incorporated in the Order of 02/05/2026)*

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5 **ALDER CREEK NEURO-REHABILITATION INSTITUTE**

6 Comprehensive Inpatient Neurologic Rehabilitation

7 4501 Recovery Parkway, Rivergate, CA 91766

8
9 **Re:** Reyes, Yolanda M.

MRN: ACNRI-2025-1478

10 **DOB:** 06/22/1991

Date of Certification: 02/03/2026

11 **To:** Superior Court of California, County of Los
12 Angeles — Probate Division

Case No.: 25STPB09876

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15 I, **Helena Vasquez-Ortiz, MD**, am a physician duly licensed to practice medicine in the
16 State of California, board-certified in Physical Medicine and Rehabilitation (physiatry). I
17 am the attending physiatrist of record for Ms. Yolanda Reyes at the Alder Creek
18 Neuro-Rehabilitation Institute, where Ms. Reyes has been admitted for inpatient
19 neurologic rehabilitation continuously since December 22, 2025. I have personally
20 examined, treated, and directed the interdisciplinary care of Ms. Reyes not less than three
21 times per week throughout her admission, and I have reviewed the complete rehabilitation
22 record, the acute-care records from Rivergate Regional Trauma Center, and the formal
23 neuropsychological evaluation of Marcus Vandenberg, PhD, ABPP-CN, dated
24 02/03/2026.

25 Upon this basis, I certify the following opinions, each held to a reasonable degree of
26 medical certainty:
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1. Ms. Reyes sustained a severe traumatic brain injury with diffuse axonal injury on 10/18/2025 that rendered her, at that time and for a period thereafter, unable to make informed medical or personal decisions.
2. Throughout her rehabilitation admission, Ms. Reyes has demonstrated a steady, one-directional trajectory of cognitive recovery. Serial cognitive measures (GOAT progressing from 68 on admission to sustained emergence above the 75 cutoff by 01/07/2026; serial MoCA scores progressing from bedside-floor through 17/30, 22/30, 24/30, and 25/30) document consistent gain at every re-assessment, with no episode of backsliding on any measure.
3. Formal neuropsychological evaluation by Dr. Vandenberg on 02/03/2026 confirms that Ms. Reyes is fully oriented across all axes; that attention, working memory, learning and memory, language, abstraction, and reasoning are within normal limits; and that persistent deficits are limited to mildly reduced processing speed and mildly reduced efficiency on complex executive tasks combining set-shifting with speed demands.
4. Dr. Vandenberg's formal capacity interview conducted under the MacArthur Competence Assessment Tool for Treatment (MacCAT-T) establishes that Ms. Reyes satisfies each of the four established elements of decisional capacity — understanding, appreciation, reasoning, and expression of a stable, consistent choice — for personal and medical decisions.
5. It is my opinion that Ms. Reyes has recovered sufficient cognitive **capacity** to make personal and medical decisions on her own behalf. Her decisional capacity for personal and medical decisions is **restored**. Substitute consent for personal or medical decisions is no longer clinically necessary.

1 6. Ms. Reyes possesses capacity to communicate her own preferences regarding the
2 pending temporary conservatorship and to be heard on that matter by the Court.

3 7. As a prudential accommodation only, and not as a capacity finding, Dr. Vandenberg
4 has recommended that during the near-term period of continued recovery Ms. Reyes
5 may benefit from surrogate consultation or advisory support on complex,
6 longer-range financial or legal decisions that place higher demands on the
7 processing-speed and complex-executive subdomains in which she continues to show
8 mild residual inefficiency. This is an accommodation recommendation and does not
9 qualify the opinion that Ms. Reyes possesses decisional capacity for personal and
10 medical decisions.
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13 I declare under penalty of perjury under the laws of the State of California that the
14 foregoing is true and correct.

15 Executed at Rivergate, California, on February 3, 2026.
16

17 _____
18 **Helena Vasquez-Ortiz, MD**

19 Physical Medicine & Rehabilitation

20 Attending Physiatrist

21 Alder Creek Neuro-Rehabilitation Institute

22 4501 Recovery Parkway, Rivergate, CA 91766
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24 *End of Exhibit A.*
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